

Court No. - 39

Case :- WRIT - C No. - 63165 of 2015

Petitioner :- Indian Industries Association

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C., Shivam Yadav

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

The petitioner is permitted to implead the Power Corporation as respondent no. 6 in the writ petition. A copy of the writ petition may be served on learned counsel for the Power Corporation during the course of the day.

It is submitted by learned counsel for the petitioner that in view of the provisions of Clause 3.4(d) of the Electricity Supply Code, 2005 and the Government Orders dated 21 September 2012 and 4 October 2012, there can be no tapping from independent dedicated industrial feeder of the petitioner and therefore, the impugned Office Memorandum dated 2 September 2015 which directs that respondent no. 5 M/s Arjoo Industries can be tapped to this feeder on cost sharing basis is illegal.

The matter requires consideration.

Learned Standing Counsel appears for respondent no. 1. Shri Shivam Yadav appears for respondent nos. 2 to 4 and Shri Mahboob Ahmad appears for respondent no. 5.

Issue notice to respondent no. 6 by registered post. Steps be taken within a week.

The respondents may file their counter affidavits within three weeks. Rejoinder affidavit, if any, may be filed within one week thereafter.

List this petition for admission/hearing in the first week of January 2016.

Till the next date of listing, the operation of the impugned Office Memorandum dated 2 September 2015 shall remain stayed.

Order Date :- 19.11.2015/SA

(Dilip Gupta,J.)

(Mukhtar Ahmad,J.)

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Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

List this petition in the third week of February 2016. Interim order, granted earlier, shall continue till the next date of listing.

Order Date :- 5.1.2016

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(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)

Court No. - 34

Case :- WRIT - C No. - 63165 of 2015

Petitioner :- Indian Industries Association

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C., Shivam Yadav, Udit Chandra

Hon'ble Sudhir Agarwal, J.

Hon'ble Ajit Kumar, J.

1. Passed over for the day on account of illness of Sri Mayank Kumar Agrawal, learned counsel for petitioner.

2. List peremptorily on 04.12.2017.

Order Date :- 24.11.2017

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Court No. - 34

Case :- WRIT - C No. - 63165 of 2015

Petitioner :- Indian Industries Association

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Shivam Yadav,Udit Chandra

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Called in revised. None appeared on behalf of petitioner. However, learned Standing Counsel and Sri Kamlesh Kumar Jaiswal, holding brief of Sri Shivam Yadav, learned counsel for respondents are present. We have perused the record.

2. By means of the present writ petition, petitioner has sought the following reliefs:

"a. to issue a writ, order or direction in the nature of mandamus restraining the respondents no. 2 to 4 from tapping the supply line of the respondents no. 5 & 6 from 11 KV Dedicated Industrial Faridpur Feeder of the petitioner (pursuant to the office memorandum dated 02.09.2015) emanating from 33/11 KV Andharpura Sub Station;

b. to issue a writ, order or direction in the nature of certiorari quashing the office memorandum dated 02.09.2015 issued by the respondent no. 4 to the extent tapping from the feeder of the petitioner only;

c. to issue a writ, order or direction in the nature of mandamus directing the respondents no. 1 to 4 to enforce the Government Order dated 21.09.2012 & circular dated 04.10.2012 in respect of 11 KV Dedicated Industrial Faridpur Feeder of the petitioner by issuing direction that the tapping of the petitioner's feeder be not permitted except after taking the consent of the petitioner in accordance with law."

3. However, we ourselves have gone through the pleadings, grounds as also reliefs sought and find that petitioner is not able to make out a case so as to justify interference of this Court by granting reliefs, as prayed for.

4. Moreover, it appears that either the cause of action no more survives or that petitioner has lost interest in this matter or it has otherwise become infructuous and, probably for this reason, none is interested to have decided this matter on merits and that is why, counsel for petitioner is absent.

5. Dismissed. Interim order, if any, stands vacated.

Order Date :- 4.12.2017

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